

Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

The allegations of the Cross-Complaint are sparse. In addition to alleging generally that Cross-Defendants “[made] threats to remove real and personal property of the Cross-Complainants from the Subject Property,” the Cross-Complainants allege that “[o]n November 12, 2021, Cross-Defendants, and each of them, wrongfully entered onto the Subject Property and started to destroy the real and personal property of Cross-Complainants to the point that police had to be called to stop Cross-Defendants and their agents from the continued destruction of Cross-Complainants['] private property.” (XC at ¶ 20.) These allegations are inadequate to state a claim for intentional infliction of emotional distress.

The MJOP on the cause of action for intentional infliction of emotional distress is **granted with leave to amend. Amended pleadings must be filed and served within 30 days of service of notice of entry of this order.**

7. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CROSS-COMPLAINT**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, “Cross-Defendants”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, “Cross-Complainants”)’s entire Cross-Complaint.

Cross-Defendants move on the grounds that Cross-Complainants failed to join an indispensable party (Defendant and Cross-Complainant Pamela Parker).

For the following reasons, the MJOP is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs’ Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement

by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that the Carapias' Cross-Complaint should be dismissed for failure to join Parker, who they contend is a necessary and indispensable party under Code of Civil Procedure section 762.010.

"An indispensable party is one whose interest in the subject matter of the litigation would be injured or affected if he was not joined and the plaintiff was granted the affirmative relief sought. [Citations.] This may occur 'where a number of persons have undetermined interests in the same property, ... and one of them seeks, in an action, to recover the whole, to fix his share, or to recover a portion claimed by him. The other persons with similar interests are indispensable parties. The reason is that a judgment in favor of one claimant for any part of the property or fund would necessarily determine the amount or extent which remains available to the others. Hence, any judgment in the action would inevitably affect their rights.' [Citation]." (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1494-1495.)

"'... [D]efendants are [also] entitled, if they so desire, to have all the parties having an interest in the subject-matter before the court, in order that its judgment shall be a final determination of the whole matter, and leave nothing to be done by piecemeal.'" (*Cain v. State Farm Mut. Auto. Ins. Co.* (1975) 47 Cal.App.3d 783, 795 [citations omitted].)

The Code of Civil Procedure describes indispensable parties at section 389:

A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

(CCP § 389(a).)

The Code of Civil Procedure continues:

If [such] a person ... cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.

(*Id.* at § 389(b).)

An objection that a suit lacks indispensable parties is “so fundamental, it need not be raised by the parties themselves; the court may, of its own motion, dismiss the proceedings, or refuse to proceed, until these indispensable parties are brought in.” (*Bank of California Nat. Ass’n v. Superior Court in and for City and County of San Francisco* (1940) 16 Cal.2d 516, 522.)

Cross-Defendants argue that “[d]espite the Carapias seeking to extinguish Parker’s 12.5-foot-wide easement over the Carapia Property, Parker is not named as a party in the Carapias’ Cross-Complaint.” (MJOP at 2:21-22.) That the Cross-Complaint seeks such relief is not entirely clear to the Court, nor is it clarified by Cross-Complainants’ opposition, which states in part that “Azamey/Unger claim[] that Parker and the Carapias are apparently adverse to each other and that Carapias should have named Parker in said Cross-Complaint on the grounds that Carapia and Parker have hostile claims to the title or efficacy of the easement.” (Opp. at 3:13-16.) The Court has reviewed the Carapias’ Cross-Complaint and the only easement referenced is the one Cross-Defendants seek to enforce by their First Amended Complaint. (See XC at ¶ 8.) The prayer for relief seeks “judgment that Cross-Complainants are the fee simple owner of all right, title, and interest in and to the described Subject Property free from any claim of easements or rights **on the part of Cross-Defendants**[.]” (XC Prayer for Relief at ¶ 1 [emphasis added].) Cross-Defendants repeatedly reference Parker’s “12.5 of easement over the Carapia property” (see, e.g. MJOP at 3:6) but that appears to be the depth of their own easement over the Carapia’s property (excluding the 7.5 feet over the Parker property). (See FAC at ¶ 8 and Fig. 2.) The Court is not aware of a separate Parker easement over the Carapia property.

It is true that a quiet title judgment cannot be entered in the absence of all parties with an interest in the property at issue. (See *Washington Mutual Bank v. Blechman* (2007) 157 Cal.App.4th 662, 667 [“A person is an indispensable party to litigation “if his or her rights must necessarily be affected by the judgment.””].) While Parker may be a conditionally necessary party (given her interest in the Azamey/Unger easement), it is not clear that she is an indispensable party to the Carapias’ Cross-Complaint such that it cannot proceed without her participation. Furthermore, she is a full participant in this litigation, given that she is a named Defendant and Cross-Complainant in her own right. There is no risk of inconsistent obligations with respect to the subject easement.

The MJOP on this ground is **denied**.